



CSE332

INDUSTRY ETHICS AND LEGAL ISSUES



-Patents

- **Patent:** A statutory grant by the government for new inventions.
- **Monopoly Rights:** Grants exclusive rights to the inventor for a defined period.
- **Disclosure Requirement:** The inventor must fully disclose the invention.
- **Legal Protection:** Prevents others from using, making, or selling the invention without permission.

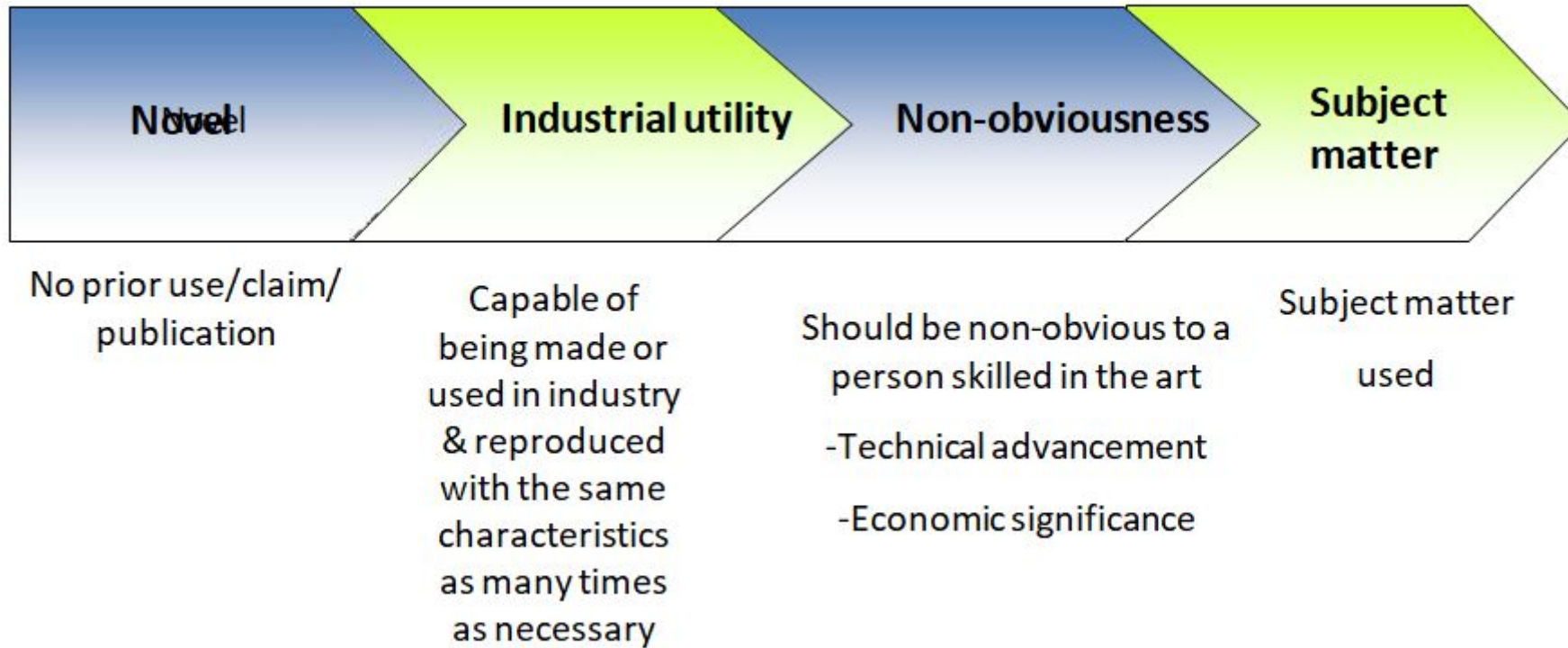
- Patent rights are territorial
- Term: 20 years from date of filing
- **Aim**
 - Encourage industrial development
 - Encourages complete disclosure
 - Prevents duplication
 - Focus on commercial relevance
 - Prevents exploitation of researchers
 - Revenue generation
 - Source of technical information



What Can Be Patented

- ◆ **Process or Method**
- ◆ **Machine or Apparatus**
- ◆ **Article of Manufacture**
- ◆ **Composition of Matter**
 - « **Chemical Compounds**
 - « **Physical Mixtures**
- ◆ **Improvements of Any of the Above**

Patentability Criteria





Novelty

- Novelty mean that the subject matter **SHOULD NOT BE**
 - PUBLISHED IN **ANYWHERE IN THE WORLD** PRIOR TO THE PATENT APPLICANT INVENTING IT
 - IN **PRIOR PUBLIC KNOWLEDGE OR PRIOR PUBLIC**, BUT NOT NECESSARILY PATENTED OR PUBLISHED



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Novelty

- USE, SALE, MANUFACTURE, & DEVELOPED **ANYWHERE IN THE WORLD**
- CLAIMED BEFORE IN A PATENT SPECIFICATION **ANYWHERE IN THE WORLD**

Novelty Search

- The Novelty Search is conducted to see whether the invention
is anticipated by any prior art



What are Anticipations

Meaning w.r.t. to Patents:

- Any description of the invention which destroys the element of novelty of the invention



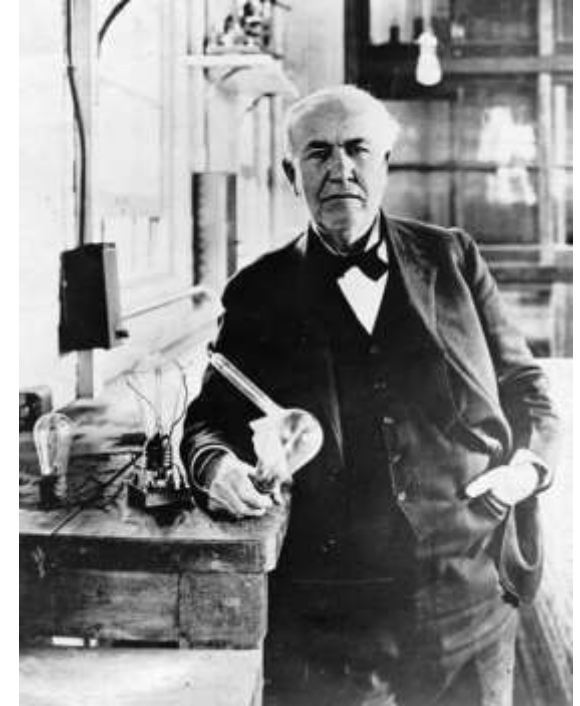
Application for patents

Who can file a patent?

Section 6: Persons entitled to apply for patents

- *True and first inventor of the invention*
- *Assignee of true and first inventor*
- *Legal Representative of a deceased person who immediately before his death was entitled to make such application*

Application submitted either alone or jointly with other person.





Types of Applications

- Ordinary Applications
- Convention Application
- Patent of Addition Application
- Divisional Applications
- PCT International Phase Application
- PCT National Phase Application

Documents required for filing of A Patent Application

1. Application for Grant of Patent in [Form 1](#) in duplicate
2. Complete/Provisional specification in [Form 2](#) in duplicate
3. Statement and Undertaking in Form 3.
4. Power of Attorney in [Form 26](#) (in original) ; (if filed through attorney)
5. Declaration of Inventor-ship in [Form 5](#)
6. Requisite Statutory fees (copy of the Priority cheque / DD).
7. Covering letter- indicating the list of documents

Contents of Specification

- Title of the invention
- Field of the invention
- Background of the invention (PRIOR ART)
- Object of the invention
- Summary of the invention
- Brief description of drawings, if any
- Detailed description of the invention
- Examples
- Claims- not required in provisional
- Abstract- not required in provisional

Types of Application

Provisional application

- 1) Get early priority
- 2) Not expensive
- 3) Quick
- 4) Title/Description
- 5) No claims
- 6) Cannot be filed in case of conventional/PCT/Divisional application
- 7) Filing provisional application is an optional but an advisable step

Types of Application

Complete specifications

Where an application for a patent is accompanied by a provisional specification, a complete specification shall be filed within twelve months from the date of filing of the application,. E.g.

Example

Provisional application: 01-12-2008

Complete specification: 01-12-2009



MCQ for Quick Revision

1. What is the primary objective of a patent?

- a) To prevent all others from inventing similar ideas
- b) To grant exclusive rights to an inventor for a limited time
- c) To keep new inventions secret
- d) To ensure only large corporations can innovate

2. . Which of the following is NOT a requirement for patentability?

- a) Novelty
- b) Non-obviousness
- c) Industrial applicability
- d) Prior public disclosure

3.

3. How long is a patent valid from the date of filing?

- a) 10 years
- b) 15 years
- c) 20 years
- d) 25 years

4. What does the "novelty" requirement mean in patent law?

- a) The invention must be useful
- b) The invention must be published before applying
- c) The invention should not be publicly known before the patent application
- d) The invention must be available for commercial use before filing

5. Who is eligible to file a patent under Section 6 of the patent law?

- a) Any employee of a company
- b) The true and first inventor, an assignee, or a legal representative
- c) Only large corporations
- d) Any person who knows about the invention

6. Which of the following is NOT a type of patent application?

- a) Ordinary Application
- b) Convention Application
- c) Copyright Application
- d) PCT National Phase Application

7. What is the purpose of a novelty search in patenting?

- a) To ensure an invention is commercially viable
- b) To determine if an invention has been anticipated by prior art
- c) To register an invention internationally
- d) To protect trade secrets

8. Which document is NOT required when filing a patent application?

- a) Application for Grant of Patent in Form 1
- b) Complete/Provisional Specification in Form 2
- c) Trademark Certificate
- d) Power of Attorney (if filed through an attorney)

9. What is a key benefit of filing a provisional patent application?

- a) It allows for early priority while delaying full application costs
- b) It guarantees automatic patent approval
- c) It includes detailed claims and legal rights
- d) It is mandatory for all types of patents

10. How long does an applicant have to file a complete specification after submitting a provisional application?

- a) 6 months
- b) 12 months
- c) 18 months
- d) 24 months

1. **Answer:** b) To grant exclusive rights to an inventor for a limited time
2. **Answer:** d) Prior public disclosure
3. **Answer:** c) 20 years
4. **Answer:** c) The invention should not be publicly known before the patent application
5. **Answer:** b) The true and first inventor, an assignee, or a legal representative
6. **Answer:** c) Copyright Application
7. **Answer:** b) To determine if an invention has been anticipated by prior art
8. **Answer:** c) Trademark Certificate
9. **Answer:** a) It allows for early priority while delaying full application costs
10. **Answer:** b) 12 months



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